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Congressional Report, Juvenile Delinquency Report of the Committee on the Judiciary, United States Senate, March 27, 1958

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JUVENILE DELINQUENCY

REPORT

OF THE

COMMITTEE ON THE JUDICIARY

UNITED STATES SENATE

(85th Cong., 2d sess.)

MADE BY ITS SUBCOMMITTEE ON JUVENILE DELINQUENCY

PURSUANT TO

S. Res. 52 as extended

(85th Cong., 1st sess.)

TOGETHER WITH

INDIVIDUAL VIEWS



MARCH 27, 1958.—Ordered to be printed

UNITED STATES
GOVERNMENT PRINTING OFFICE
WASHINGTON : 1958

from absolute illiteracy on up in the intelligence scale. The teaching is done by non-nonnatives with accredited status.

It would appear to me, again, on the basis of a 1-day inspection, that more changes could be made in the dining room. The long narrow tables are being replaced by smaller tables at which inmates may choose their own seats and eating partners. This effort to obtain a more conventional dining atmosphere should be continued by the inmates. Its effect should be good.

Efforts also are under way to obtain more space for office and administration work by erecting a balcony floor in the large dining hall. This will free up the office space.

COMMITTEE ON THE JUDICIARY*

JAMES O. EASTLAND, Mississippi, *Chairman*

ESTES KEFAUVER, Tennessee
OLIN D. JOHNSTON, South Carolina
THOMAS C. HENNINGS, Jr., Missouri
JOHN L. McCLELLAN, Arkansas
JOSEPH O. O'MAHONEY, Wyoming
SAM J. ERVIN, Jr., North Carolina
JOHN A. CARROLL, Colorado

ALEXANDER WILEY, Wisconsin
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ARTHUR V. WATKINS, Utah
EVERETT MCKINLEY DIRKSEN, Illinois
JOHN MARSHALL BUTLER, Maryland
ROMAN L. HRUSKA, Nebraska

SUBCOMMITTEE TO INVESTIGATE JUVENILE DELINQUENCY IN THE UNITED STATES

(85th Congress)

THOMAS C. HENNINGS, Jr., Missouri, *Chairman*

SAM J. ERVIN, Jr., North Carolina
ESTES KEFAUVER, Tennessee
JOHN A. CARROLL, Colorado

WILLIAM LANGER, North Dakota
ALEXANDER WILEY, Wisconsin
JOHN MARSHALL BUTLER, Maryland

JAMES L. SULLIVAN, *Chief Counsel*
ERNEST A. MITLER, *Special Counsel*
CARL L. PERIAN, *Research Director*

*The late Honorable Matthew M. Neely of West Virginia served as a member of both the Committee on the Judiciary and the Subcommittee To Investigate Juvenile Delinquency until his death on January 18, 1958.

II

Unfortunately, since my inspection was made on a Saturday, the shops were not in operation, and I was shown through the premises of each.

In general, however, I felt I obtained a good insight into the spirit of the institution and its mission. It is my opinion, on the basis of this inspection, that a great deal is being accomplished at Englewood, bearing in mind that the predominant emphasis at this institution is rehabilitation of young offenders under the Youth Act.

Again, I would like to express my appreciation to the courtesy and cooperation extended to me by Warden Madigan, Herbage, and Kennedy.

Sincerely,

UNITED STATES
GOVERNMENT PRINTING OFFICE
WASHINGTON : 1958

JUVENILE DELINQUENCY

March 27, 1935.—Ordered to be printed

Mr. HARRINGTON, from the Committee on the Judiciary, submitted the following

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I. THE NATIONAL JUVENILE DELINQUENCY PICTURE

In previous reports of the subcommittee, it was indicated that the upward trend in juvenile delinquency among those in the 10 to 17 years of age group has been in evidence since 1943. In 1956, for the eighth consecutive year there was a tremendous increase in the number of juvenile court cases. During that year, there were 529,000 juvenile delinquency cases brought before the juvenile courts. (That year was the first time data were collected on a national representative sample of juvenile courts by the Children's Bureau of the Department of Health, Education, and Welfare.) This constitutes a 21 percent

*On January 28, 1956, by an order of the Senate the time for filing reports was extended to February 21, 1956, and by an order of the Senate on March 12, 1956, was extended to March 12, 1956. On March 12, 1956, by a further order of the Senate the time for filing reports was extended to March 12, 1956.

JUVENILE DELINQUENCY

MARCH 27, 1958.—Ordered to be printed

Mr. HENNINGS, from the Committee on the Judiciary, submitted the following

REPORT

Senate Resolution 89, which was adopted by the Senate on June 1, 1953, provided that the Committee on the Judiciary, or any authorized subcommittee thereof, was authorized and directed to conduct a full and complete study of juvenile delinquency in the United States. It stipulated that such an investigation give special attention to (1) determining the extent and character of juvenile delinquency in the United States and its causes and contributing factors, (2) the adequacy of existing Federal laws dealing with youthful offenders, (3) sentences imposed on; or other correctional action taken with respect to, youthful offenders by Federal laws dealing with youthful offenders, and (4) the extent to which juveniles are violating Federal laws relating to the sale or use of narcotics.

Pursuant to the authorization in Senate Resolution 89, the Senate Subcommittee To Investigate Juvenile Delinquency was organized and commenced an investigation of juvenile delinquency. Although the time limitation of the original resolution was January 31, 1954, the Senate has each year since that time authorized a continuation of the study. During 1957 the subcommittee operated pursuant to Senate Resolution 52,* agreed to January 30, 1957, as amended by Senate Resolution 191.

I. THE NATIONAL JUVENILE DELINQUENCY PICTURE

In previous reports of the subcommittee, it was indicated that the upward trend in juvenile delinquency among those in the 10 to 17 years of age group has been in evidence since 1948. In 1956, for the eighth consecutive year there was a tremendous increase in the number of juvenile court cases. During that year, there were 520,000 juvenile delinquency cases brought before the juvenile courts. (That year was the first time data were collected on a national representative sample of juvenile courts by the Children's Bureau of the Department of Health, Education, and Welfare.) This constitutes a 21 percent

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increase in 1956 over 1955, or the largest yearly increase in any of the previous 8 years. This increase seems to be substantiated by the FBI arrest data for children under 18 which shows a 17 percent increase in 1956 over 1955. This figure represents 2.2 percent of the children in the 10 to 17 years of age group of our population.

In the 8-year period from 1948 through 1956, juvenile court cases more than doubled while the child population of that age group increased only 19 percent. As in previous years, the increase is at a much greater rate in rural areas than in urban areas, and the ratio of 5 boy delinquents to every 1 girl delinquent is still in evidence.

Based on the Bureau of Census predictions for the number of boys and girls in the 10 to 17 year age group in 1965, we will have approximately 44 percent more children in this category than in 1956. Once again, the subcommittee's prediction still holds that if our delinquency rate continues its upward trend at the same rate it has during the years 1948 through 1956, approximately a million children will appear before the courts in 1965.

In the year 1956, there were upwards of 1,300,000 boys and girls coming to the attention of local law-enforcement officers. Approximately one-fourth of the police cases are referred to juvenile courts. The remaining juvenile court cases are referred from individuals and other agencies in the community.

Although we feel that much progress has been made in the development of new and dynamic programs for the handling of the delinquency problem, we realize that it is an on-going, long-range problem and one that requires on-going, long-range scrutiny, evaluation, reevaluation, and study. In spite of our progress in the field of delinquency, we find a 21 percent increase in juvenile court cases in the latest year for which we have complete data—and only 3 percent of this increase can be attributed to the increase in population of children of juvenile court age. While many may wonder at the apparent lack of success of our efforts to combat delinquency, the subcommittee feels that if it were not for these efforts our delinquency rates would be increasing at an even greater pace than at present.

II. ACTIVITIES OF THE SUBCOMMITTEE

During the past 4 years the Subcommittee To Investigate Juvenile Delinquency has investigated a number of environmental and psychological situations, which are all germane to the subject of juvenile delinquency. Because of the makeup of the staff, which includes people with training in the fields of both law and the social sciences, we have been able to go into areas concerning delinquency which previously were virgin fields. Because of the nature of the subcommittee, we have been able to investigate many situations which necessitated not only the power to subpoena and investigate legally, but the social-psychological knowledge to interpret and intelligently react to the data we gathered. As a result, the subcommittee has come up with many sound bills, reports, and recommendations backed and given the sanction of both the legal professions and the behavioral and educational sciences.

Where it was felt Federal action or Federal legislation was necessary as a remedy or solution, such action was initiated or the needed legislation introduced. Where it was felt necessary to make strong recom-

mentations to organizations such as the movie industry, the television industry, the comic book industry, the post office, and a host of other institutions throughout the United States, they have been made through the reports of the subcommittee. In addition, attention has been focused nationally on many areas throughout the United States that had problems that were specific to the area, but also had nationwide implications. This technique has had far-reaching effects in stimulating local communities to action, State governments to action, and indeed the Federal Government to action.

In going throughout the country, the subcommittee would gather in one place and at one time experts from the many, many fields of human endeavor that might touch upon delinquency, and through the interchange of ideas we have crystallized many plans for action, many thoughts, and much more competent activity in relation to the delinquency problem. The subcommittee has, in effect, acted as a catalyst, bringing about the combination of many heretofore diverse elements in the field of juvenile delinquency. By applying the prestige of the United States Senate to a situation, we have encouraged and actually achieved the difficult task of getting various institutions, organizations, and agencies within communities to forfeit the individual nature of their activities and to combine and coordinate their efforts in an attempt to combat their own delinquency problems.

The volume of correspondence and the nature of the requests and inquiries made to the subcommittee and the stature of the organizations requesting the information that we have, testifies to the fact that the Nation looks in part to the Federal Government for leadership in finding solutions to so vexing a problem. In carrying out its function of investigation, study, evaluation, and dissemination of information received, the subcommittee has listened to and examined some 1,200 witnesses in public and executive hearings, studied the programs of scores of local community agencies, State agencies, and Federal agencies, collected statistics on a great number of factors relating to delinquency, analyzed and made recommendations in regard to studies and statutes, and conducted a variety of hearings in 26 cities.

Our most recent effort has been the development of what the subcommittee calls a total community plan for the handling of juvenile delinquency. The subcommittee observed throughout its years of study that the main problems in the handling of juvenile delinquency are (1) the lack of trained and skilled workers in the field of delinquency; and (2) where these workers are available to agencies, there is a lack of coordination, guidance, and accountability by a central administrative body, which in turn waters down their effectiveness. In view of the first problem, the subcommittee has been steadfastly attempting to get State and city officials to enact legislation which would alleviate the shortage of trained personnel in this field by providing motivation in the form of funds and grants.

In relation to the second problem, the subcommittee in December 1957 planned extensive hearings in the city and State of New York, from which it hoped to develop this total community plan to promote the concept of a central administrative agency for coordinating the activities of all agencies and institutions handling delinquency in any one geographical or political area. Information acquired through our investigations and from the testimony of the many witnesses from public and private agencies in New York is to be incorporated into

a detailed and extensive report. From the nature and volume of the correspondence received by the subcommittee, we know this information is needed and desired throughout the United States.

Unfortunately, because of the chairman's illness we were unable to complete the hearings in New York, and we are now in the process of gathering a wealth of data from that city and from that State which will be included in a report to be issued this year.

III. PROBLEMS STUDIED DURING 1957

During 1957, the subcommittee, under Senate Resolution 52, as amended by Senate Resolution 191, continued its investigations into the causes and contributing factors and related areas of juvenile delinquency as outlined in the resolutions.

The subcommittee conducted studies and investigations on a limited basis in five major areas. These included (1) the interstate traffic in guns and switchblade knives used by many youths and youth gangs in large urban areas; (2) the recruitment and induction of juvenile offenders and former juvenile offenders into the Armed Forces; (3) methods of handling incorrigible and delinquent children in the school systems of several large cities; (4) a preliminary investigation by subcommittee staff members of a number of State training schools with the view of determining how the Federal Government can assist in strengthening and improving the treatment programs in these schools; and (5) a hearing in New York City which centered around that city's programs for the prevention, treatment, and rehabilitation of juvenile delinquents. The ultimate object of these hearings is to develop a model system of coordinating the activities in any geographic or political area for other cities to utilize in handling their juvenile delinquency problem.

IV. LEGISLATION OF THE SUBCOMMITTEE

During the 1st session of the 85th Congress, the subcommittee drafted and introduced 11 pieces of legislation which it was believed would aid in remedying situations discovered during previous investigations. Included in this legislation were S. 2558, a bill which would outlaw interstate transportation of switchblade knives to help keep them out of the hands of juveniles; three measures aimed at improving facilities and programs for the treatment of juvenile drug addicts were introduced as a result of the subcommittee's hearings on that subject; and the so-called omnibus bill, which was introduced in the 84th Congress and passed by the Senate near the end of that session, was refined in light of later study and reintroduced in the 85th Congress as S. 431. This is one of the most important pieces of legislation ever to be proposed for alleviating the juvenile delinquency problem across the Nation, and, if enacted into law, should greatly increase the effectiveness of agencies and institutions fighting delinquency.

Staff members participated in hearings held by other committees on bills which were originally introduced by this subcommittee. One of these bills, S. 1659, which proposed that the District of Columbia enter into the reciprocal enforcement of support agreement with other States, was reported out of the District Committee as S. 2032 and passed in July of 1957. The passage of this bill closed a great loophole

in the welfare services of the District of Columbia and the States surrounding it.

Members of the staff also reevaluated the so-called border legislation, which had been introduced in the previous Congress as S. 959. The purpose of this bill was—

to prohibit juveniles unaccompanied by parent or guardian from going outside the United States without a permit issued by the Attorney General for such purpose.

The object of the original measure was to keep juveniles under 18 from exposure to prostitution, liquor, narcotics, and pornographic literature, which were found to be readily available to them in several towns along the United States-Mexico border. Preliminary investigation indicated that the above conditions still exist. Letters of inquiry were sent to the attorneys general of all the Southwestern States and to district attorneys of all border towns. Venereal disease, narcotics, and prostitution figures were brought up to date to support the following proposed legislation—a concurrent resolution requesting the President and the Department of State to initiate negotiations for a treaty with the Republic of Mexico (1) to control the movement of unescorted juveniles entering border communities and (2) to alleviate by cooperative action the serious conditions of narcotics traffic, vice, and pornography that exist in many Mexican border towns. This could be implemented by the utilization of existing statutes whereby the Department of State can order the immigration authorities to impose departure control through cards of identification. This procedure is provided for in the Code of Federal Regulations (title 22, par. 53.5, based on sec. 215) of the Immigration and Naturalization Act (Public Law 414, 82d Cong.). While this law authorizes travel control over United States citizens only during wartime or in a national emergency, Presidential Proclamation 3004, January 23, 1953 (vol. 18, Federal Register), activates this statute. Conferences were held by the subcommittee staff with representatives of the Bureau of Immigration and Naturalization and the Department of State. The subcommittee has failed in its efforts to develop any interest on the part of the people concerned with this problem in terms of legislative proposals or executive action.

Switchblade knives

An investigation was conducted by the staff of the subcommittee into the use of dangerous weapons by juveniles, with special emphasis on the interstate traffic and importation of switchblade knives. The major manufacturers, importers, and many of the major distributors of switchblade knives were interviewed and their methods of operation studied.

In an effort to determine the severity of the problem on a community level, the major police departments in the United States were sent questionnaires. Other questionnaires were mailed to a selected number of mail-order purchasers of these knives.

S. 2558 was introduced in the 1st session of the 85th Congress and is presently pending before the Senate Committee on Interstate and Foreign Commerce. Under existing law, there is no penal prohibition against the interstate movement of switchblade knives. S. 2558, if enacted into law, would prohibit interstate traffic in these knives and

has special provisions for dealing with those selling to a person under the age of 18 years.

The subcommittee's investigation disclosed that many of these knives were manufactured abroad and distributed by firms in this country who handle numerous items in addition to switchblade knives.

It was established that these items were being widely distributed through the mail by distributors to the various States that had local laws prohibiting possession, sale, or distribution of switchblade knives. This fact, the subcommittee feels, points out the need for Federal control of the interstate shipment of these instruments, since local legislation is being systematically circumvented through the mail-order device.

In the United States, 2 manufacturers have a combined production of over 1 million switchblade knives a year. Both concerns are important cutlery manufacturers and the manufacture of switchblade knives represents only a small part of their business. It is estimated that the total traffic in this country in switchblade knives exceeds 1,200,000 per year.

The questionnaires returned by police chiefs throughout the country indicate that many switchblade knives have been confiscated from juveniles. The police chiefs, almost without exception, indicate that these vicious weapons are on many occasions the instrument used by juveniles in the commission of robberies and assaults. Of the robberies committed in 1956, 43.2 percent were by persons under 21 years of age. A switchblade knife is frequently part of the perpetrator's equipment in this type of crime. In New York City alone in 1956, there was an increase of 92.1 percent of those under 16 arrested for the possession of dangerous weapons, one of the most common of which is the switchblade knife.

Out of several hundred questionnaires sent by the subcommittee to purchasers of switchblade knives, whose names were derived from a distributor's mailing list, 133 responses have been received. Seventy-five percent of the purchasers were under 20 years of age, and of this group, 43 percent were between 11 and 15 years of age. Of the persons responding to the questionnaire, only a small portion claimed that the knives were secured for a constructive purpose.

In addition to the interviews with manufacturers and distributors and the receipt of information from questionnaires, staff contact was made with some of the purchasers in the immediate area and numerous retail stores. The proprietors of these stores conceded that the bulk of the demand for switchblade knives came from juveniles, some as young as 8 or 9 years of age.

A major outlet for the switchblade knife are military supply stores which are located near military installations. Some of the manufacturers and distributors felt that the purchase of these articles by military personnel, even though they might be 17- and 18-year-olds, was not objectionable. A questionnaire sent to the provost marshal in most of the major Army installations established that the possession of these knives was contrary to post regulations and that frequent assaults had occurred in which these knives had been used within the confines of the installation. These articles are not used in connection with training for military purposes. The one exception is an order for automatic-opening knives that was placed by the Department of Defense for parachutists to use in cutting their ropes. However, these

knives were issued directly to military personnel and were not secured through Army-Navy supply stores.

During 1956 at Fort Bragg, N. C., it was necessary for the military police to confiscate from personnel 161 switchblade knives—an average of 3 a week. At Fort Sill, Okla., 75 of these knives were confiscated as a result of aggravated assault in 1956. In the area of Fort Bliss, Tex., alone, there are more than 20 establishments selling these knives.

One of the largest manufacturers and several of the major distributors of switchblade knives said they would be glad to abandon manufacturing and distributing the article if it were banned on a Federal footing.

In response to the subcommittee's questionnaire, police chiefs from all sizable communities, with few exceptions, uniformly supported the enactment of legislation prohibiting the interstate traffic in these articles.

Although over 20 States have an explicit prohibition against the sale of the automatic-opening knife, and many more have a general kind of prohibition against possession with intent to use any kind of dangerous article, the dissemination of approximately 1,200,000 of these articles, many of them going into the States where there are local prohibitions against their distribution and many of them getting into the hands of juveniles, shows the need for Federal controls.

The proposed legislation directed against the interstate traffic in these articles provides for a maximum fine of \$2,000 and/or a 5-year prison sentence, with a maximum fine of \$5,000 if an interstate sale is made to a juvenile under 18.

Firearms legislation

Questionnaires were sent to police departments throughout the United States concerning the interstate movement of firearms and its impact on juvenile delinquency. The questionnaire was directed at the desirability of including pistols and revolvers in the type of firearms that must be registered with the Treasury Department under the National Firearms Act. At present they are exempt from registration. The other point of inquiry was to learn the views of police chiefs on an amendment to the Federal Firearms Act (15 U. S. C. 901-909).

This proposed amendment would require a manufacturer or dealer, licensed pursuant to the Federal Firearms Act, to conform with all State laws governing the purchase of firearms. At present a manufacturer or dealer, licensed pursuant to the Federal Firearms Act (15 U. S. C. 901-909), is required to predetermine and observe State laws governing the purchase of firearms only in instances where the State requires that a license be obtained for the purchase of such firearms. The underlying purpose of the suggested change in the law is to broaden the pertinent sections of the Federal Firearms Act (15 U. S. C. 902 (e)) to require the Federal licensed manufacturer or dealer to conform with all State statutes relative to the sale, purchase, and possession of firearms. This would mean that in any State that had such legislation, the Federal out-of-State licensed manufacturer or dealer shipping firearms into the State would be required to notify a designated authority of the sale.

At present, many firearms are moving across State lines and falling into the hands of young persons without the knowledge of the author-

ities. The reaction of the police chiefs to the questionnaire was mixed, and further study is being given to the problem before a definite position is taken. However, it was firmly established that firearms can move with considerable freedom from State to State in a manner sometimes inimical to the public good. It was found to be easy for a juvenile to respond to a gun ad in many of the magazines and to secure a weapon through the mail.

The following résumé indicates the bills that have been introduced by the subcommittee and the present status of the bills:

New legislation, 85th Cong.

Bill No.	Comments
S. 675.....	A bill to amend sec. 2314, title 18, U. S. Code, with respect to the transportation in interstate commerce of articles obtained by false or fraudulent pretenses, representations, or promises or through any scheme or artifice to defraud. (Senators Kefauver, Langer, and Hennings—Referred to Committee on the Judiciary.)
S. 980.....	A bill to authorize the establishing by the Surgeon General of an aftercare posthospital treatment program for drug addiction and for other purposes. (Senators Kefauver, Hennings, Langer, Payne, and Javits—Referred to the Committee on Labor and Public Welfare.)
S. 981.....	A bill to create an Advisory Committee on Drug Addiction in the Department of Health, Education, and Welfare. (Senators Kefauver, Hennings, Langer, Payne, and Javits—Referred to the Committee on Labor and Public Welfare.)
S. 982.....	A bill to establish a hospital of the Public Health Service in one of the Pacific Coast States, especially equipped for the treatment of persons addicted to the use of habit-forming drugs. (Senators Kefauver, Hennings, Langer, and Javits—Referred to the Committee on Labor and Public Welfare.)
S. 2558.....	A bill to amend title 18, U. S. Code, to prohibit interstate traffic in switchblade knives and to prevent these instruments from getting into the hands of juveniles. (Senators Kefauver, Hennings, Butler, and Clark—Referred to the Committee on Interstate and Foreign Commerce.)

Resubmitted legislation, 85th Cong.

85th Cong. bill No.	84th Cong. bill No.	Comments
S. 355.....	S. 2193.....	A bill to amend the law relating to indecent publications in the District of Columbia. (Senators Kefauver, Hennings, and Langer—Referred to the Committee on District of Columbia.)
S. 356.....	S. 2190.....	A bill to amend the act entitled "An act to create a juvenile court in the District of Columbia," so as to provide for the appointment of a referee. (Senators Kefauver, Hennings, and Langer—Referred to the Committee on District of Columbia.)
S. 357.....	S. 2191.....	A bill to amend sec. 7 of the Juvenile Court Act of the District of Columbia. This bill puts the Director of Social Work under the judge. (Senators Kefauver, Hennings, and Langer—Referred to the Committee on District of Columbia.)
S. 431.....	S. 728 and S. 4267..	A bill to provide for assistance to and cooperation with States in strengthening and improving State and local programs for the diminution, control, and treatment of juvenile delinquency. (Senators Kefauver, Hennings, and Langer—Referred to the Committee on Labor and Public Welfare.)
S. 588.....	S. 3021.....	A bill to amend title 18, United States Code, to make unlawful certain practices in connection with the placing of minor children for permanent free care or for adoption. (Senators Kefauver, Langer, and Thyne—Referred to Committee on the Judiciary.)
S. 1659.....	S. 2195.....	A bill to make uniform the law of reciprocal enforcement of support in the District of Columbia. (Senators Hennings, Kefauver, and Langer—Referred to the Committee on District of Columbia, reported out as S. 2032, and passed into law.)

V. ARMED FORCES INDUCTION POLICIES

In our Report No. 130, issued early in 1957, the subcommittee indicated the problems attendant to induction or recruitment by the Armed Forces of former delinquents. The summary of recommenda-

tions in that report indicated that because of the great number of former delinquents who make up the available manpower pool for the United States Armed Forces, the rejection of all of them would not be feasible. We further indicated that the indiscriminate admission of all former delinquents into the armed services is just as unwise. While we felt that the present policy of the Air Force, for example, of admitting some delinquents and rejecting others is a desirable procedure, we indicated that the present criteria for doing so were unsound. The subcommittee recommended that detailed studies of the careers of former delinquents who have already served in the Armed Forces be made to determine those delinquents who did perform well as against those who did not perform well. From these studies, prediction scales could then be developed to more efficiently use our manpower in any future emergency.

During the course of the year the subcommittee found that the Air Force had initiated such a study at Lackland Air Force Base. A wealth of data was gathered by persons in the field of juvenile delinquency and criminology who were hired as consultants to the Air Force, and upwards of \$900,000 was spent in conducting the research. However, because of lack of funds to complete the study, the Air Force Research and Development Center dropped the project and the data are now stored in a warehouse at Lackland. The information contained in them is not being utilized by the Air Force or anyone else, and it is the opinion of the subcommittee that the final stage of this vast research—the analysis of the data gathered and the setting up of the prediction scales—should be completed if the money already spent is not to be a total loss. Over and above this, the value of the prediction scale that could be derived from this information is inestimable to the safety and future of this Nation.

The subcommittee staff studied a series of military establishments responsible for the induction and recruitment of Armed Forces personnel. Recruiting officers were interviewed at the station level, at a United States Army recruiting district which recruits personnel for 1 of the 6 Army areas in the United States, and at the corresponding Army Headquarters.

In regard to the acceptance of former juvenile delinquents for service in the Armed Forces, the recruiting manuals of the various services stipulate certain offenses that, once committed, make the individuals ineligible for entry into the service. There is no compromise. No attempt is made to determine whether or not the former delinquent has been rehabilitated and is presently a good prospect for service. The fact that he committed the offense precludes his serving and the recruiting officer has no alternative but to refuse to accept the application.

On the other hand, the recruiter has the discretion of admitting potential recruits with minor violations. (It is ironic that while a single traffic offense may not preclude the entry of a youth into the service, the commission of 2 or 3 traffic offenses requires a waiver and can result in the individual being refused entry. On the other hand, an adult with a similar series of traffic offenses is not ineligible to enter the service.)

There is a third group of former delinquents who are eligible for being waived into the service. In order to accomplish this, the recruiter must fill out waiver forms which are in turn sent to the com-

mander of his recruiting district. At this stage, the available record of the former delinquent is studied and a recommendation is made to either accept or reject the potential recruit. (If the juvenile court record is not made available, the individual's case is not even considered, which is a problem discussed in another part of this report.) This recommendation is then forwarded to the headquarters command of the Army area where final disposition is made of the case.

At this stage an individual with no particular background in the field of crime or delinquency determines on the basis of the information supplied him by the commander of the recruiting district whether or not the waiver should be granted. The subcommittee was told by the officers at the intermediate level (who made the more adequate study of the individual) that sometimes there seemed to be no rhyme or reason for some of the action taken on their recommendations. At times people that they strongly recommended be rejected were accepted at headquarters command of the Army area or vice versa. The subcommittee was given examples of persons with minor offenses being rejected while a person with a relatively serious offense was accepted. The subcommittee plans to study this situation further and issue a report, suggesting changes in this procedure.

Another problem indicated in Report No. 130 was the controversy between correctional people in the field of delinquency, many of whom regard their records on former delinquents as confidential, and the military recruitment and induction personnel, who need this information as a basis for rejection or acceptance of any former delinquent. This situation was most acute in those areas where the juvenile court refused to cooperate with recruiting officers which ended any chance the former delinquent might have had of getting into the service. Many juvenile courts justify this stand, however, by claiming that the recruiters are not qualified to interpret the records which many times include psychiatric data.

On the other hand, recruiters claim that juvenile court judges give enlistment in the service as an alternative to probation or sentence. This practice was so common that the Armed Forces issued regulations to prohibit the entry of any person who was released from probation in order to enlist.

In order to gain an exact picture of the practices of juvenile courts in regard to this problem, the subcommittee staff sent 250 questionnaires to juvenile courts throughout the Nation. We found a wide variety of practices that ranged from a complete rejection of any attempts by the military to gain information on the record of a former delinquent to a workable arrangement with the military to aid them in the determination of acceptance or rejection.

The following excerpts from several questionnaires indicate the wide divergence in philosophy of various juvenile courts on this problem and the difficulties encountered at times due to the non-uniformity of State laws in regard to releasing the records of former delinquents. The following statements are in answer to the question:

Have you ever denied records requested by a juvenile delinquent or by a recruiting officer for the purpose of enlisting the juvenile in some branch of the armed services?

Hon. Leo J. Yehle, judge of children's court, county of Onondaga, Syracuse, N. Y.:

Have not denied records requested by a delinquent. It is our policy in accordance with our law to deny records to the armed services and others.

Hon. W. Rhodes Clay, judge, county court of Fayette County, Lexington, Ky.:

No. But I believe denial in some instances would have been more just to the applicant because of wrong conclusions by recruiting officer or staff in examining the records.

Hon. William R. Collinson, judge of juvenile court, Greene County, Springfield, Mo.:

Such information has never been denied. However, under the new Juvenile Code of Missouri going into effect August 29, 1957, the disclosure of this type of information is expressly prohibited by law except upon written order of the judge of the juvenile court having jurisdiction. All recruiting offices and selective service boards should be required to operate in accordance therewith.

Hon. Arthur L. Eno, judge, district court of Lowell, Lowell, Mass.:

Yes. Records are given to recruiting officers, providing only that the consent is given by the juvenile offender himself or his parents, or with the permission of the presiding justice of this court.

Hon. John J. Connelly, judge, Boston Juvenile Court, Boston, Mass.:

No. Two or three years ago, because of the enlistment and selective service officers denying the right of service to boys and girls who had made a mistake because of their immaturity and childhood and from that time had been good citizens, we threatened to withhold records of delinquency. The armed services in this area are now cooperating with our court by the more judicious use of records.

Hon. Carlton F. McNally, judge, courthouse, St. Paul, Minn.:

We do not turn over files to any branch of the armed services, since we feel that the record itself is a private one. However, upon written authorization from the parents or guardian of the juvenile, the probation department gives information from the file—selecting all relevant information.

Hon. Forrest R. Shanaman, judge, courthouse, Reading, Pa.:

Yes, when the complaint was a minor one, or when the delinquent act was not considered symptomatic behavior, or when the boy was with a group and was not the instigator.

Hon. Orman W. Ketcham, judge, juvenile court of the District of Columbia, Washington, D. C.:

It has been the policy of this court to deny such requests made by recruiting officers. Requests by juvenile delinquents to inspect their own legal (as distinct from social)

records are usually granted. However, the court makes an exception in cases where, in its judgment, the nature of the offense—homicide, arson, sexual perversion—would clearly tend to disqualify the former juvenile delinquent from enlistment in the military service.

The following statements are in answer to the question:

Have there been any instances in your court in the last year where the probation period of a delinquent was waived on condition that he enlist in some branch of the armed services? Do you favor or oppose this policy?

(Hon. Harry L. Eastman) John J. Mayar, director of social services, Cuyahoga County Juvenile Court, Cleveland, Ohio:

No. This court is firmly opposed to using enlistment in the armed services as an alternative to probation or commitment to an institution. We believe it is most unwise for a judge in any court, not just juvenile, to state to the delinquent or defendant in an adult court words to the effect that if he doesn't enlist in some branch of the service, he will be "sent away." The armed services have a great deal to offer the young men and women of our country, but his experience is something which the boy himself should want and not something which is offered to him as an alternative to being committed to a training school. We are most willing, as a rule, to cooperate fully with the recruiting office in releasing our jurisdiction in those cases where it is believed that the individual would make a good member of the armed services and where the plan for enlistment was initiated by the boy and his family and not the court.

Hon. French Clements, judge, Probate Court of Vanderburgh County, Evansville, Ind.:

In the past year no probation period has been waived on condition that subject enlist in any branch of the armed services. I am opposed to waiving a probation period for the sole purpose of permitting or forcing any person to enlist in any branch of the armed services. A situation could exist which would warrant a release from probation to enable one to enlist.

Hon. W. W. Woolfolk, judge, Fulton County Juvenile Court, Atlanta, Ga.:

It depends upon the individual person involved. There have been instances where a recruiting officer would check a boy out and find that everything else was in order and would ask that the court dismiss him from probation so that he could enter the armed services free of civil restraints. There have been some instances where the court felt that the offense was not sufficiently serious to stand in the boy's way and bar him from entering the service, and in such cases we have waived probation and dismissed him from our jurisdiction. I feel that, when handled properly, this can be beneficial both to the young man involved and the armed services.

(Hon. Nathan J. Kaufman) Simon Pilzner, assistant chief probation officer, Wayne County Juvenile Court, Detroit, Mich.:

Yes, many times. Waiver of probation in favor of enlistment only when indicated as first offender, or type of delinquency where court uses its discretion. We also favor predating of termination of probation because formal closing of case sometimes takes approximately 3 months. (Many services demanded "off probation 6 months prior to enlistment" before acceptable to them.)

Hon. August C. Taveria, judge, Third District Court of Bristol, New Bedford, Mass.:

There have been many instances in this regard and I have no opposition to this policy.

Hon. Edwin L. Swope, district judge, courthouse, Albuquerque, N. Mex.:

Yes. I favor such a policy because military service solves the problem for many boys 17 years of age who are not required to attend school and cannot find employment.

Hon. James H. Montgomery, Jr., judge, juvenile and domestic relations court, Richmond, Va.:

We have terminated our probation in order that the individual can be accepted into the armed services. We do not think that the fact that a boy is on probation should be considered when he tries to enlist. When we dismiss our action, we then lose control of the boy, and if he is rejected for service, there is no way the court can resume jurisdiction.

The returned questionnaires are now in the process of being tabulated. A report will be issued by the subcommittee on the basis of our study, in which we will make recommendations to the National Association of Juvenile Court Judges, which members of the subcommittee hope will help settle the issue.

VI. STUDY OF INSTITUTIONS FOR JUVENILE DELINQUENTS

A study was initiated in 1957 of the State correctional schools for boys and girls in the United States. This study, while still continuing, has developed to the point that certain positive findings can be presented, as well as a number of constructive recommendations.

The superintendents and senior staff members of many of these institutions were conferred with. Twenty-two of these institutions were visited, and close to 100 boys and girls who had been at these institutions were interviewed. In addition, reports relating to the State correctional schools and all other related literature on this subject were studied. In the case of brutality and immoral conduct between the staff and the juveniles, corroborative material and judgments of conviction have been obtained.

Over 33,000 juveniles reside each year in all State and local training schools in the United States. These youngsters very often represent the so-called hard core delinquents. They are the group that require the most intensive utilization of all the techniques and skills the community has available.

They are youngsters who are in the formative years of their lives and are more amenable and responsive to an intelligent and well-rounded treatment program than adult offenders who are inmates of State and Federal penal institutions. Ironically, in many States the adult correction program has developed in a progressive manner much more rapidly than the juvenile correction program, possibly because until the past 7 years the community's interest has been more intensively focused on adult, rather than juvenile, institutions.

In the past 10 years there has been a sharp change in the philosophy of those responsible for the administration of these institutions. Formerly, many administrators believed that their function was purely to hold juveniles in secure custody and to rehabilitate and correct their charges by the use of punitive and repressive measures. Corporal punishment, frequently extending into brutality, was commonplace. Regimentation, rigid discipline, and a never-ending series of rules and regulations, which the normal person might find difficult to conform to, were the backbone of the traditional training school program. All of the superintendents who conferred with the staff of the subcommittee expressed a concern in developing a helpful treatment program for the juveniles in their institutions. They were all equally anxious to eliminate as much as possible the arbitrary use of repressive measures and corporal punishment. This healthy change in attitude has, of course, been reflected by a great improvement in the programs of many of the State correctional schools. Unfortunately, despite the desires of the superintendents who were interviewed, many of the State correctional schools, in practice, still continue to be institutions dominated by the use of force where young people can only continue to develop an already hostile and bitter attitude toward society.

This condition is attributable principally to the inability of State correctional schools to obtain trained, skilled, and understanding staff on the supervisory and custodial level. The intentions of the administrative staff often are enlightened and constructive, and an excellent program can be formulated in theory and on paper, but this sound structure and beginning has little value if the staff is unable or unwilling to carry it out.

Frequently strict regulations against the use of corporal punishment are ignored by staff members who are unskilled in dealing with juveniles, and despite instructions to the contrary from the superintendent, force and threats are resorted to to solve many of the typical problems that arise when dealing with a group of delinquents and sometimes emotionally disturbed juveniles.

Legislation has been drafted for introduction to establish in the Division of Juvenile Delinquency Service of the Children's Bureau, Department of Health, Education, and Welfare, a training center to develop skilled, professional staff for employment in institutions and agencies for delinquents. The establishment of this institution, it is hoped, will make possible a sound training program not only for administrators, but for those on the supervisory and custodial level in the State correctional schools. Not only will the training of staff improve the programs in the institutions, but employees of a higher caliber will be attracted to work in these institutions if they have an opportunity for developing professional skills that will permit them to advance in the institutional field.

The significance of the proposed legislation is best illustrated by an analysis of some of the subcommittee's preliminary findings regarding State training schools.

It is commonly agreed by all professional people working in the institutional field that individualized treatment and a homelike surrounding is the most effective setting for helping delinquent youngsters who must be separated from their homes. The United States Children's Bureau publication, *Institutions Serving Delinquent Children*, recommends:

Living groups in training schools should not exceed a maximum of 20 students, even when they are fairly homogeneous (p. 43).

Furthermore, it is the consensus of opinion that the schools should be limited in size and that the staff should be sufficient in number not to be overwhelmed by the sheer mechanics of daily living. In many of the urban States, the correctional schools have as many as 500-800 boys in their custody; rarely does the number fall under 250 in the public institutions. In one midwestern State training school, they often have over 200 boys over and above the number for which the school was designed. Confronted with this overcrowding and lack of staff members, the following gains in the juvenile correctional field are a tribute to an uphill fight by many devoted superintendents and staff members who are dedicating their careers to work in these institutions.

One critical area that has received special attention in many of the State training schools is the improvement and development of their academic program. This was illustrated in a visit to the State Training School for Boys, Milledgeville, Ga. Recognizing that there are many boys at the school who cannot benefit from a standard school program, the school superintendent, Mr. Ireland, has established a program for slow learners and boys of limited capacity. In this program the emphasis is not only on learning the rudiments of writing and reading, but on training in the elementary, routine mechanics of daily living. Reading defects have been found to be a characteristic of many delinquent youngsters. This specialized program, which is executed without pressure and in an informal way, enables many of these youngsters to equip themselves with the basic tools necessary to navigate in society. This, in turn, relieves them of much of their hostility. At the Federal reformatory, Ashland, Ky., a specialized course for boys who have reading defects is being developed, with the prospect of great success. Many of the other institutions visited were in the process of developing special classes for boys or girls who had reading problems.

Brutal and immoral conditions were found to exist in certain of the training schools. Often a situation was found where a good school with a good staff had several employees of sadistic or perverted leanings, whose practices were not always brought to the attention of the responsible persons in the administration.

Questionnaires were sent to social work schools to determine the extent to which they were training staff for employment in State correctional schools. The responses indicated an awareness of the need for expansion of curriculum in this direction. Several of the schools have developed courses along this line. The New York School

of Social Work is rapidly expanding its program in this field. Almost uniformly, the schools stated that few of their students were interested in employment in correctional schools due to the low pay, poor professional status of many of the schools, rapid change of staff—sometimes for political reasons—and generally the lack of opportunity to do really constructive work in a surrounding that focused its attention on custody rather than treatment.

Recommendations

1. Each State, through its universities and social work schools, and the Federal Government, through the Department of Health, Education, and Welfare, should establish training centers for the development of trained and understanding staff to work in State correctional institutions. Special focus should be given to training cottage supervisors, who are at present usually the least trained—and yet the most vital—persons dealing with boys and girls in State correctional institutions. Employment in these schools should be put on a career basis, with good pay and chance for advancement in the department operating the school. This would attract a higher caliber personnel for employment in these institutions.

2. A program of halfway houses—residential centers for boys and girls who have been released from State correctional institutions—should be developed. Often boys and girls are released from institutions to return to a home where conditions are so critical and undesirable that it is impossible for them to adjust properly to the community. Every large city and community should have available a residence where these young people could live upon release. They would be free to participate in all community affairs, have the benefit of a limited treatment program in the residence, and could visit their home on occasion. Several already exist—one being the Stuyvesant House in New York City—and they have been very successful.

3. Men and women being employed for work in correctional institutions should be more closely screened to make certain that their background is one of emotional stability and good character. By being more careful in employment of these people, there will be less chance of sadistic or perverted individuals obtaining entry into an atmosphere peculiarly suited to their desires.

4. Further emphasis should be made in developing special classes and instruction for slow learners and especially for retarded readers.

Thus far the investigation into training schools has been on a limited basis and conclusions and recommendations made herein will necessarily be supplemented upon completion of the subcommittee's investigation.

The subcommittee hopes to investigate conditions in many more of the State and Federal training schools this year, with a view toward developing a program whereby the State and Federal Governments can work together to raise the standards of institutions housing these unfortunate children.

VII. THE HANDLING OF DELINQUENT AND INCORRIGIBLE CHILDREN IN THE PUBLIC SCHOOL SYSTEMS

Increasingly serious problems in the Nation's public school systems with delinquent and incorrigible youth have resulted in much publicity with reference to the expulsion of these unmanageable children and

the handling of mentally disturbed children. The subcommittee began studying this problem when it became apparent that right here in the Nation's Capital child guidance and mental health facilities available to the school system were almost totally lacking, and, as a result, school officials were faced with the unfortunate situation of expelling unmanageable children, turning them out into the streets, as it were, and releasing them from any sort of formal control or formal treatment program. The subcommittee staff made a study of this situation and found that Washington, D. C., is one of the major cities woefully lacking in ancillary facilities for handling school problems. Mentally disturbed children in the District must wait 12 to 18 months before they can be given any help. During this time, of course, their condition can, and usually does, become much worse. They can and do increasingly become a threat to society, while less and less amenable to treatment. In a nearby Maryland county the brutal murder of a junior high school girl by a classmate who had been a long-time mental case brought forth statements from school and mental health officials that the major reason for this occurrence was the lack of adequate facilities in the area for handling mentally disturbed children in the schools. School officials knew the boy was emotionally disturbed long before his illness erupted so violently, but they were at a loss over what to do with him because of this lack of facilities.

The increasingly serious problems in both the District and neighboring county school systems, including three other murders committed by pupils, resulted in much publicity with reference to the handling of these children and the expulsion of unmanageable children. On looking into the District situation, it was found that incorrigible children were in danger of being turned loose from schools to roam the streets until they were picked up by the police.

The subcommittee offered the superintendent of schools of the District its help in developing an emergency plan to handle the juveniles who became so dangerous that they had to be removed from school. We also offered our help in initiating a long-range preventive plan to keep the more serious cases from developing. Suggestions and recommendations were made to the school system by the subcommittee by correspondence and interviews, and the latest communication to the subcommittee from the District school superintendent indicates that these incorrigible children will not be excluded from any formal handling. Instead, a team composed of 1 psychologist, 1 psychiatrist, and 2 social workers from the health department will review the cases of children who may have to be excluded. This team will study and evaluate each case prior to exclusion and make recommendations for placement or care after the pupil is excused from school. (The services of these professional people were obtained by the Commissioners' Youth Council from the District Health Department, and they were assigned to the Department of Pupil Appraisal, Study, and Attendance.)

A good example of the overpowering odds against which the District school officials must work is the situation in which the subcommittee found the District schools' Pupil Appraisal, Study, and Attendance Department. At the time of our inquiry, this department was composed of 10 people who administered individual psychological examinations. The unit has three functions: (1) To conduct group tests of achievement and intelligence; (2) to make psychological

cal studies of behavior problems and to make recommendations based on these studies; and (3) to handle attendance problems.

In 1956, 5,928 children were referred to the department for psychological testing. They were able to complete the examination of 1,212 referrals. The remaining 4,716 were sent back to school the following fall with a request to the principal to send back only the serious cases. Of the thousands of referrals, only those cases held to be emergencies are given attention, while the incipient delinquents remain in the files indefinitely, or until such time as they become emergency cases. The staffing of this special services department has not been kept in line with pupil expansion. The obvious weaknesses in the program are: (1) The majority of the children cannot be handled; and (2) many recommendations made to parents by this department are not acted upon. There are no followup facilities to determine if their recommendations have been carried out. When recommendations for other school services are made, such as referral to a speech correction class, the child is put on a waiting list and given a temporary excuse from school. This may result in the child staying out of school several days, several weeks, or sometimes indefinitely. The school system has no facilities whatever for certain types of physical and mental cases.

This division had available for 2 hours a week the services of a psychiatrist, which consisted mainly of advice to the rest of the staff. Emergency cases were referred to public health clinics; however, these too are overcrowded.

There is also, within the District school system, a series of special classes to which are referred children who are relatively normal emotionally, but have some sort of school or home problem for which temporary treatment is determined to be necessary. They are referred from regular classrooms by the principals of the various schools. Children referred to these special classes are placed in (1) citywide adjustment classes, of which there are 3 in the District; and (2) separate community school type adjustment classes, of which there are 13 in the District.

Ideally, in each school there should be 1 class of this type for the older boys and 1 for the younger boys in order to keep them separated. In the District, teachers who handle these classes need no special qualifications other than those required for the average schoolteacher. All 3 of the citywide classes which handle these problem children have untrained instructors, as it is virtually impossible to get persons who have been especially equipped to handle them because of the extremely low salary which the Board of Education is able to pay. As indicated above, the special classes which exist in the city school system, such as remedial reading and speech classes, are not equipped to handle all of the referrals.

During the year two young inexperienced teachers were put in charge of special classes for problem children with the understanding that if the job was too difficult for them they should notify the principal, whereupon they would be released. They both did find the job too difficult. The assistant superintendent in charge of junior high schools in the District told the subcommittee, "When you have reached the bottom of the barrel, there is nothing else you can do." He was not criticizing the ability of these two teachers, but the situation wherein young teachers, as yet unskilled in handling disciplinary problems, were asked to cope with a group of the worst behavior

problems in the District school system. The subcommittee is in full agreement with the superintendent and in sympathy with the District School Board. In its 1958 budget request, the reading specialists for senior high schools, the remedial reading classes for senior and junior high schools, and classes for the mentally retarded were eliminated along with the request for pupil counselors for junior high schools.

The members of the subcommittee are aware of the importance of this type of personnel in handling incipient behavior problems. The fact that delinquents invariably are characterized by an inability to read is an indication of their lack of ability to perceive and understand the world they live in—a great factor, psychologists tell us, in their delinquent behavior. The fact that the junior high school age is one of great stress and strain, during which many vexing problems arise, should be evidence enough of the need for special counselors for these young people. However, when it is realized that it is these problem situations that often result in delinquent behavior, the need for this type of personnel is magnified many times.

In view of the present situation in the District of Columbia school system, where it was necessary to exclude students because of misconduct, where children with problems must wait for special classes or services that may never come, where teachers with no special training to do so are asked to handle problem classes—in view of this, the members of the subcommittee entreat the Congress of the United States to appropriate the necessary money to make the school system of the Nation's Capital one that can be emulated, rather than one that is inadequate in terms of personnel and available facilities.

The subcommittee is aware of the fact that this is a problem faced by every large community in the United States. For example, New York schools have been beset by this problem of incorrigible and delinquent youth who disrupt and deteriorate classroom procedures. In looking for solutions to this situation, the subcommittee staff made a study of the so-called "600" school system in the city of New York, which is a series of 15 schools to which unmanageable and incorrigible children can be referred by their teachers. The members of the subcommittee feel that this group of schools is part of the answer to the problem of unmanageable children.

We will go into a much more detailed analysis of the effectiveness of the "600" schools in the forthcoming report on the New York hearings.

In reference to the District of Columbia situation, the subcommittee cannot emphasize enough the responsibility that the District Commissioners have in seeing to it that the schools of the Nation's Capital are more adequately staffed with better trained and better paid personnel. We would like to commend the Commissioners' Youth Council on its "maximum benefits" project, which is bringing to bear all of the available community services on the emotionally disturbed pupils of a Washington school in a high delinquency area. This is a beginning, but it is only one school. If more dynamic steps are not taken, such as those outlined in the District of Columbia Health Department proposals for strengthening and establishing additional mental health services for the schools and the school board's proposals for increased personnel to handle problem children, the District may at some future date find itself in a situation similar to that which now plagues other large cities.

VIII. OTHER ACTIVITIES OF THE SUBCOMMITTEE

Throughout the year just past the subcommittee staff distributed upwards of 10,000 copies of reports and printed transcripts of hearings to a wide variety of professional and nonprofessional organizations and agencies and individuals throughout the country. Six thousand of the subcommittee's Report No. 130, the so-called omnibus report, were distributed. While numerous requests for this report are still received, there are only a limited number left which are distributed to congressional offices and to professional organizations and agencies. This report covered a wide variety of factors associated with the delinquency problem. Discussed in great detail were such subjects as rehabilitation of juvenile drug addicts, venereal diseases among juveniles, recreation, housing projects, therapeutic services, urban youth commissions, and family services dealing with the prevention of delinquency. Other areas covered in the report were juvenile vandalism, the effect of economic need and slum areas on delinquency, juvenile drinking, youth gangs, and the effect of punishment and discipline in rehabilitating juvenile delinquents. Other topics discussed were police services for juveniles, juvenile courts, detention of children in the United States, training schools, and forestry camps. This report was hailed by the press and professional people as bringing progressive concepts into the public spotlight in regard to this Nation's juvenile delinquency problem.

The subcommittee still receives hundreds of requests by letter and phone for subcommittee publications which are now out of print. Many of these reports have been quoted widely in the professional journals. Many have also been quoted widely and incorporated into the permanent literature of the juvenile delinquency field, as evidenced by publications such as college textbooks which appeared during the past year.

The subcommittee also issued a report during the year on juvenile delinquency in St. Louis. While this report was in effect a critical evaluation of the juvenile delinquency fighting facilities in the city of St. Louis, it was regarded by that city as a highly objective one and was in part responsible for that city's streamlining its delinquency-handling machinery.

During the past year some of the Nation's largest and most well-known dealers in pornographic literature were indicted or received maximum prison sentences under the law. These pornographers were originally pointed out by the subcommittee through investigation by the subcommittee staff and their activities brought to light through public hearings.

Because the subcommittee has been the only agency in this country's history to publish complete works on the relationship between the mass media and juvenile delinquency, which included our reports on the motion picture, television, and comic book industries, we are still considered by the public to be a focal point for registering complaints regarding these media. Because of this, we receive much correspondence in relation to our work in the area of removing objectionable and harmful contents from them. We are also in a position to pass on to these industries the complaints we receive and to keep them alert as to public opinion about their products.

IX. DELINQUENCY AMONG INDIAN CHILDREN

The subcommittee, in October 1954, under the acting chairmanship of subcommittee member Senator William Langer of North Dakota, began a series of hearings covering Indian reservations in the States of North Dakota, South Dakota, New Mexico, Arizona, Utah, Colorado, Nevada, California, Wyoming, Montana, and Idaho, to determine the increase in the incidence of juvenile delinquency on reservations. Numerous Indian leaders and public officials, who have jurisdiction over Indian affairs, had written to the subcommittee urging that these hearings be held.

The subcommittee, on September 1, 1955, issued an interim report (No. 1483) entitled "Juvenile Delinquency Among the Indians," which was a 239-page document relating extensively to many of the problems that confront the Indian people on Indian reservations throughout the United States which may have an impact on the incidence of delinquency on the part of Indian youth. The report brought to the attention of Congress the very low average yearly income of the Indian family, the physically deteriorated area in which they live, the poor living conditions on Indian reservations, coupled with the difficulty of Indians obtaining gainful employment or loans for their small businesses, farms, or ranches. This economic factor had a direct relationship to the delinquency pattern among Indian children.

Also brought to the attention of Congress was the poor health conditions and lack of health facilities on Indian reservations, the lack of proper welfare and youth services on the reservations, and the need for greater public education facilities and improvement of the educational services rendered by the Bureau of Indian Affairs.

It was further pointed out that law and order on the Indian reservations need great improvement and that lack of funds and personnel was the most contributing factor to such laxity of enforcement of law and order as found on the different reservations.

The subcommittee made extensive conclusions and recommendations which were submitted to the Congress of the United States.¹ Several of these recommendations have been enacted into law and others have been acted upon by the executive branch of the Government, primarily through the Bureau of Indian Affairs and the United States Health Service.

During this past year, primarily through the energetic services of Senator William Langer, the subcommittee's activities as regards the American Indian have been geared toward improvement of the financial status of the American Indian family, as well as improvement in health, education, welfare, and recreational services. The subcommittee has participated in numerous conferences dealing with problems affecting the American Indian people and their reservations. One of these conferences was a 10-day conference of Indian chiefs representing 40 tribes from the States of Oklahoma, Kansas, and Mississippi, held at Dallas, Tex. This regional conference was called by Indian Affairs Commissioner Glen L. Emmons, where he and his staff members and Bureau of Indian Affairs area personnel met with the Indian chiefs to discuss the many facets of Indian affairs on Indian reserva-

¹ See Subcommittee Rept. No. 1483, 84th Cong., 2d sess., an interim report on juvenile delinquency among the Indians, pp. 44-48.

tions. The subcommittee was represented at this conference in lieu of conducting open hearings which had been previously scheduled. One of the principal subjects was the providing of sources of jobs for the Indian people. The Indian chiefs believe that although the relocation program aided in obtaining employment for Indians in major cities, gainful employment had to be provided for the Indian family in or near his reservation. Another topic of great interest and concern to the Indian chiefs attending this conference was the increase in juvenile delinquency among the Indian youths. Much of this 10-day conference revolved around this important social problem and resolutions were passed by the group urging effective measures be taken to combat juvenile delinquency on Indian reservations. To effectuate the concern of the Indian chiefs throughout the country of the need for job opportunities in or near Indian reservations, Senator Langer, joined by 19 Senators, introduced Senate bill 809 to provide loans or grants to Indian reservations for the purpose of encouraging industry in or near the reservations.² The Senators who cosponsored this legislation were as follows: Senators O'Mahoney, Kefauver, Thye, Case of South Dakota, Young, Magnuson, Dworshak, Morse, Chavez, Mundt, Church, Jackson, Murray, Barrett, Bible, Bricker, Kerr, Humphrey, and Mansfield.

The jewel bearing plant at Rolla, N. Dak., which has been in operation since 1952, has been hiring almost exclusively Indian labor and has become a model in the encouragement of industry at or near Indian reservations. Six other industrial plants have been put into operation at Gallup, N. Mex.; Flagstaff, Ariz.; Cherokee, N. C.; Lame Deer, Mont.; Casa Grande, Ariz.; and Zuni, N. Mex. These plants hire almost exclusively Indian labor.

The subcommittee has participated in several other conferences relating to the many problems facing the American Indian on the Indian reservation. The Governors' Interstate Indian Council met in Oklahoma City on October 24, 25, and 26, and was attended by representatives from each of the States where Indian reservations are located. At this conference, discussion was held dealing with Indian affairs. Subcommittee member William Langer, in submitting a statement to the conference, in part stated as follows:

The Indian people through their leaders have expressed the desire that they want to provide for themselves and their children by obtaining stable and gainful employment so that they may become a self-sustaining people and not depend, any more than necessary, on the services accorded by the Federal and State Governments. Not only will they be more self-sustaining economically, but it will further establish in them the strong family and community pride that has always been a part of the Indian people.

I have no doubt in my mind that with the bringing of industries to the Indian people, jobs will be created. The creation of jobs means a higher income level per Indian family. The higher level of income per Indian family means better opportunities for education, better housing, better health, and better recreation for the Indian people, resulting in less need for the heartbreaking requests for welfare aid.

² See remarks re S. 809 as reported in Congressional Record appendix on January 23, 1957

A more recent conference was sponsored by Arrow, Inc., on November 25 and 26, 1957, which was a session of Indian leaders and Indian youth and was most encouraging in meeting the problems of Indian youth on the various Indian reservations.

The subcommittee feels that since Congress has jurisdiction over the Indian people, the subcommittee should continue to examine conditions affecting the youth on Indian reservations which may lead to delinquency. The subcommittee will continue to present to the Congress of the United States the recommendations in its 1955 report, which has not yet been acted upon by the Congress. Since the hearings were begun in 1954, there has been improvement in the fields of health, education, welfare, law, and order. Much improvement is needed in the field of creating job opportunities and improving the financial plight of the American Indian family. Only until improvement in these categories is sufficiently shown can the delinquency patterns of Indian youth be reduced considerably.

INDIVIDUAL VIEWS OF SENATOR ALEXANDER WILEY

I generally concur in the committee report. I also wish to direct thought to these matters:

DANGERS

Juvenile delinquency is coming more and more to be recognized as a problem with dangerous implications. From 1955 to 1956, juveniles brought to court increased 21 percent.

From 1948 through 1956, juvenile court cases more than doubled, compared with an increase in the juvenile population of only 19 percent.

AWARENESS OF THE DANGER

The Senate Subcommittee on the Study of Juvenile Delinquency in the United States is doing a commendable job in helping to alert the country to these dangers.

The subcommittee has published specific reports on its investigations. These include studies of the influences toward juvenile delinquency resulting from crime and horror stories told in some comic books, television shows, and motion pictures. The subcommittee also issued a report on obscene and pornographic literature. And it published reports with respect to the aid in solving the problem of juvenile delinquency which is being given, and can increasingly be expected, from churches and schools.

The overall reports of the subcommittee have discussed many aspects of the problem and have coordinated the conclusions of the separate specific reports.

The number of requests for these publications indicate the welcome reception given by the public to the information which the subcommittee has gathered.

CAUSES

It is, of course, axiomatic that the center of the life of a growing child is in the home. It has long been recognized, and continues to be true, that the happy home produces no juvenile delinquents, unless there is some unfortunate and unusual outside influence.

But, under the stresses of the modern machine age, the home is finding it increasingly difficult to keep its strength and position. And children do not always receive the loving care which it may have been easier to show in a home midst quiet surroundings in a small town or village in the good old days.

Activities which help maintain and rebuild the influence of home life will, in my judgment, help reduce the problems of juveniles.

COMMUNITY AGENCIES

If and when the home fails, there are in most communities local agencies which are usually well prepared to help the youngster out of his trouble and toward a new life. However, in other places, due to

(2) There exist many different agencies with varying capabilities which may be employed advantageously in handling varying aspects of a broad program. These include Government laboratories; Government-owned, privately operated laboratories and plants; private concerns working under Government research and development contracts or other Government supports; private concerns, spurred by the profit motive, patent incentives, etc.; educational institutions; independent research laboratories, both profit and nonprofit; and so on.

(3) Even within a given group, a large measure of selectivity is essential. Whatever its status in other respects, it is the institution with a "technically progressive attitude" upon which we must depend to do the job that needs doing. This attitude may be found in large business or small, university or independent laboratory, private industry or Government agency. Or it may be absent in any of these. The important thing is to learn to identify it and then have the good sense to turn for help to those who have it. A discussion of the characteristics that go to make up this attitude lies beyond the present commentary.¹⁴ Suffice to say, it can be identified. Perhaps, in the last analysis, it simply reflects a recognition, and corresponding action to suit the recognition, that scientific research and technological achievement—and the persons responsible for these achievements—are, indeed, of great importance. It is the opposite of the attitude reflected recently by a newspaper that headlined the *World Series* on its front page and relegated the launching of sputnik to an inside page, an episode that caused Canada's Lester Pearson to comment that democracy could not survive—

if the man who thinks is derided as an egghead while the demagog is envied as a celebrity; if a ballplayer or an oil promoter occupies a far more important place in the community in terms of prestige and material reward than the teacher or preacher.

This same view was recently expressed in the *New York Times* as follows:

The hard fact is that the popular heroes of our times tend to be primarily individuals in the world of entertainment or of sports. With a few rare exceptions, such as Jonas Salk, even our most brilliant intellectual leaders, are little known and less honored by the mass of our society. We may doubt whether even 10 percent as many Americans know who Edward Teller is as compared with those who know Mickey Mantle. Yet the hard fact is that for national strength and survival it is men like Dr. Teller who should be the heroes our youngsters should want to emulate.

(4) We must explore, examine, and develop the various forms of incentive and stimuli for pushing our more talented citizens to maximum effort and accomplishment. These may take the form of private profit, patents or comparable benefits, Government support or subsidy, public recognition and prestige, and so on. Again, the important thing is to use all available legitimate means to achieve maxi-

¹⁴ For an interesting discussion of 24 characteristics commonly present in the "technically progressive" private firm, see Carter & Williams, *Industry and Technical Progress*, pp. 178-183 (Oxford, 1957).

while guidelines which other States may find useful. For instance, it says:

In the words of Governor Thomson, this is to be "an experimental program designed to bring together—at the community level—all the skills necessary for successful preventive work in the field of juvenile delinquency and youth guidance."

Nationwide, there is an accelerated interest in and concern about the observable increase in family breakdown, community disorganization, and the mounting costs of these social ills.

Wisconsin has long recognized that treatment in the community is preferable to institutional treatment, that research is needed into the causal factors of social ills, and that if social welfare programs are truly to serve the socially and economically disadvantaged, they must be preventive in nature.

The greatest effort to date, both in State and local community services, has been in the treatment of the individual who is already delinquent, neglected, emotionally disturbed, or dependent. In recent years efforts have been intensified in Wisconsin toward the developing and strengthening of all services for families in the community. This preventive work, within legal and financial limits, involved a broad program of community education and community organization, including assistance to citizens and local officials through surveys and consultation seeking to improve local recreation, education, health, welfare, law enforcement, and juvenile court services. The greatest continuing gap in prevention is in services designed to reach those families and those children especially vulnerable to social ills, before the onset of social breakdown in the individual or within the family.

CONCLUSIONS

And so, there should issue a clarion call, to each community and to each religious, civic, and governmental organization in each community, to increase and intensify its efforts to locate any and all juvenile delinquency problems in its community and to bring all of the forces for good to bear upon their solution.

1. Local community social services should be brought to their best level of operation.
2. Families which are running into difficulties should be able to find expert advice and guidance locally.
3. Schools should identify problem children promptly and make corrective guidance available to them immediately.
4. Families of those problem children should be advised how to help them.
5. Local community social services should be coordinated so as to be available to the family in time to help it solve its problems before it breaks up.
6. Great effort should be made to prevent mental and emotional damage from happening to children and to make them feel loved by their families and a wanted part of their communities.

7. Physical disabilities, which in turn can result in disabilities in spelling and reading, should be corrected to bring the child in closer and more understanding contact with his fellows. A sickly fellow, or one with poor, uncorrected eyes or otherwise inferior, may react with dangerous hostility toward the world in which he lives. (Of course, many children can adjust to a situation of being different from and inferior to the crowd; but others need special help in doing so. There is a broad range of disability problems, any one of which may create a situation which will trigger an antisocial attitude.)

8. Such legislation as is additionally necessary should be passed by the local, State, and Federal Governments to keep harmful influences like pornographic, horror, and crime stories away from children and young people.

9. The Federal Government should encourage the establishment of training schools for institutional personnel which is going to supervise or come in contact with juvenile adjustments committed to institutions.

10. Institutional programs should be for the purpose of the curing and correcting, as well as the humane punishment, of juvenile delinquents so that, when their terms are over, they will increasingly come well-adjusted and law-abiding members of society.

11. The effect of unemployment in weakening the home and lessening the needed respect in which a son holds his father should be fully appreciated by those in position to act.

12. The impact of the immigration of labor and families from the country and small town to the city, from the South to the North, is unsettling to the family and its influences for good, and so ways must be found to reestablish the home environment.

13. In youth programs, let the activity fit the child. Especially in the period of adolescence, there is the surge of new energy, new interests, and new needs. It is essential that the youth's dynamic spirit be attracted by activities which will fully utilize his energies and enthrall his ambition. Personal attention to the needs of different youngsters, or at least different types of youngsters, is usually essential if a program is to succeed in arousing his interest. Some may respond more to the opportunity to study, some more to music and beauty, others only to the most vigorous games. The school, playground, or other program director must have the great skill of being able to inspire the youngsters whom he directs, because, in a real sense, he is trying to supply the guidance and inspiration all too lacking in the impersonal world in which many underprivileged youth must live.

Youth direction and guidance of a type which can inspire the young person to selflessly devote himself to a cause (or to improve himself for a future career)—such leadership is needed.

14. And, finally, only if the community (whether city, neighborhood, town, or village) and the State, and all of the private organizations in the community and the State, cooperate wholeheartedly toward meeting the modern crisis of increasing juvenile delinquency will our free America remain the safe, happy, and constructive land we know and love so well.

ALEXANDER WILEY.

